

itself.”

While the appeal of a complaint is permissive, it is clear Petitioner is first required to pursue an appeal to the Board. The First Amended Petition fails to allege facts that this prerequisite has been satisfied.

Petitioner argues that an appeal to the Board is precluded by the futility doctrine. Exceptions to exhaustion of administrative remedies occurs “when the administrative remedy is unavailable, when it is inadequate, or when it would be futile to pursue it.” *SJCBC LLC v. Horwedel* (2011) 201 Cal.App.4th 339. “The futility exception to the requirement of exhaustion of administrative remedies is a very narrow one.” *County of Contra Costa v. State of California* (1986) 177 Cal.App.3d 62. “The futility exception requires that the party invoking the exception can positively state that the [agency] has declared what its ruling will be on a particular case.” *Jonathan Neil & Assoc., Inc. v. Jones* (2004) 33 Cal.4th 917. The First Amended Petition and Opposition fail to positively state that the Board has declared what its ruling would be on this particular case.

The demurrer is **SUSTAINED** on the grounds of Petitioner’s failure to exhaust administrative remedies. Leave to file an amended petition is denied considering Petitioner has not complied with appeal requirements of Board Policy 1312.1. Thus the filing of an amended Petition would be ineffective.

Failure to state clear and certain allegations. Respondents contend that the First Amended Petition is vague, conclusory, and that inconsistent allegations obscure the factual basis and conflates legal theories.

A traditional writ of mandate under CCP §1085 is available when the petitioner has no plain, speedy, and adequate remedy; the respondent has a clear, present, and usually ministerial duty to perform; and the petitioner has a clear, present, and beneficial right to performance. *Conlan v. Bonta* (2002) 102 Cal. App. 4th 745, 748; *Unnamed Physician v Board of Trustees* (2001) 93 Cal. App. 4th 607, 618. Two basic requirements are essential to the issuance of the writ: (1) a clear, present and usually ministerial duty upon the part of the respondent, and (2) a clear, present and beneficial right in the petitioner to the performance of that duty.

The First Amended Petition alleges Respondents have a duty under Penal Code § 11166 and Board Policy 1312.1 to report allegations involving physical contact and a ministerial duty to produce an objective investigation free from fraud. The First Amended Petition further alleges that Petitioner submitted a complaint and Respondents failed to discharge these duties in relation to that complaint. The demurrer is **OVERRULED** on the grounds that the First Amended Petition fails to state clear and certain allegations.

The Demurrer is **SUSTAINED** without leave to amend. Considering the demurrer is sustained without leave to amend and the Petition will therefore be dismissed, the motion to strike is **DENIED** as moot. Respondents provided proposed Orders that will be modified to reflect the Court’s ruling. The clerk is directed to close the file and vacate any future hearing dates upon processing of the order.

PHILLIPS, ET AL. VS. PRIME HEALTHCARE SERVICES, INC., ET AL.

CASE NUMBER: 25CV-0208680

Tentative Ruling on Demurrer (by Defendant County of Shasta): Defendant County of Shasta demurs to the Second Amended Complaint filed by Plaintiffs Fredrick James Phillips and Heather Lynn Phillips. Plaintiffs oppose the demurrer.

Meet and Confer. CCP § 430.41 requires the demurring party to “meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” The Declaration of Dominick Hurley provides evidence of sufficient meet and confer efforts.

Merits. While the issue was not raised by either party, immunity regarding the Second Cause of Action for violation of the Confidentiality Medical Information Act, the Third Cause of Action for violation of the Elder Abuse and Dependent Adult Civil Protection Act, and the Seventh Cause of Action for disability discrimination and failure to provide reasonable accommodation was not raised by the County in its first demurrer.

CCP § 430.41(b) provides “A party demurring to a pleading that has been amended after a demurrer to an earlier version of the pleading was sustained shall not demur to any portion of the amended complaint, cross-complaint, or answer on grounds that could have been raised by demurrer to the earlier version of the complaint, cross-complaint, or answer.”

“If the party against whom a complaint or cross-complaint has been filed fails to object to the pleading, either by demurrer or answer, that party is deemed to have waived the objection unless it is an objection that the court has no jurisdiction of the subject of the cause of action alleged in the pleading or an objection that the pleading does not state facts sufficient to constitute a cause of action.” CCP § 430.80(a).

Pursuant to CCP § 430.41(b), it is unclear whether the County may now be precluded from demurring on the grounds of immunity. The Court notes that there are two separate demurrers and a motion to strike currently set for hearing on August 24, 2026. In the interests of justice and judicial economy, the Court will continue this matter to **Monday, August 24, 2026, at 8:30 a.m. in Department 63**. The parties are to provide further briefing only regarding the applicability of CCP § 430.10(b) to the grounds of immunity, not to exceed 5 pages, filed no later than August 14, 2026. No further briefing on any other issue is permitted. **No appearance is necessary on today’s calendar.**

ROGHANI VS. AMERICAN HONDA MOTOR CO., INC.

CASE NUMBER: 24CV-0205967

Tentative Ruling on Motion to be Relieved as Counsel: Daniel Gopstein of Quill and Arrow, LLP moves to be relieved as counsel for Plaintiff Jasmine Kasmira Roghani. The motion is unopposed. The matter has not been properly noticed. CCP § 1005(b) requires a motion to be filed and served at least sixteen court days prior to the hearing. Plaintiff was served on July 22, 2026 by mail; less than sixteen court days prior to today’s hearing. Defendant was served on July 27, 2026 by email; less than sixteen court days prior to today’s hearing. The motion is denied for Counsel’s failure to timely serve the motion as required by CCP § 1005(b). Additionally, the Court notes that trial is scheduled for August 11, 2026. Accordingly, the Court has legitimate concerns about relieving counsel so close to the trial date. If Counsel were relieved, Plaintiff would have insufficient time to seek new counsel.

The motion is **DENIED**. A proposed order was lodged with the Court which will be modified to reflect the denial. Given the pending trial date, the parties are encouraged to meet and confer about the trial date and whether a stipulation to continue may be in order.

Tentative Ruling on Motion to Reopen Discovery and Compel Deposition: Defendant American Honda Motor Co., Inc. moves for an order to reopen discovery, to compel the depositions of Plaintiff’s five designated experts and for monetary sanctions in the amount of \$2,524.00. In the alternative, Defendant seeks an order to exclude the experts’ testimony. Plaintiff has submitted an opposition that argues that the motion is now moot because Plaintiff has offered a deposition date for expert Darrell Blasjo. Plaintiff does not oppose the reopening of discovery for the Blasjo deposition. Plaintiff requests that the Court not impose sanctions based on this offer. The opposition does not address Defendant’s request to depose the other four designated experts.

Merits of Motion: CCP § 2024.050(a) permits a party to move to reopen discovery. The request to reopen discovery is unopposed. The Court finds good cause to reopen discovery for the sole purpose of obtaining the depositions of Plaintiff’s designated experts. The Court grants the request to reopen discovery.